Health, Housing & Human Services
CLACKAMAS COUNTY

Housing Authority of Clackamas County

EQUAL HOUSING OPPORTUNITY

PROJECT BASED VOUCHER PROGRAM
PBV

Thank you for your interest and/or continued participation in the Housing Authority of Clackamas County's (HACC) rental assistance program(s). Please submit the documents listed in the section below that is applicable to you.

REQUIRED DOCUMENTS

- Request for Tenancy Approval (RTA)
- The Lead-Based Paint Disclosure form (if unit build before 1978), and
- Proof of Property Ownership (ex: grant deed).

AND

NEW OWNER/PROPERTY MANAGER TO THE RENTAL ASSISTANCE PROGRAM

- Authorization Agreement for Direct Deposit
- IRS Form W-9
- Proof of Signature Authority (typically in place if the property has **multiple owners**)

If there is no Proof of Signature Authority established and you would like to establish one for this tenancy, you may use the attached Letter of Authorization form and submit:

- Operating Agreement (Limited Liability Company)
- Partnership Agreement (Limited Liability Partnership)
- Articles of Incorporation or Bylaws (Corporation)
- Copy of the Trust (Trusts)
- Management Agreement (All pages are needed)
- Court Appointed Conservator/Receivership (All pages are needed)

OR

OWNER/PROPERTY MANAGER WITH EXISTING TENANCIES

If you have experienced recent changes, please let us know. You may return any relevant forms with updated information along with the required documents listed above. If our records reveal new information is necessary, a HACC representative will contact you.

HACC welcomes you to our program and thank you for your business. To expedite the tenancy, you may return all documents to the HACC office.

HACC – Physical Address
13930 S Gain Street
Oregon City, OR 97045

HACC – Mailing Address
P.O. Box 1510
Oregon City, OR 97045

Email: HACCLEASING@clackamas.us

WHAT HAPPENS NEXT...
AFTER THE REQUEST FOR TENANCY IS SUBMITTED:

I. AFTER THE RTA IS SUBMITTED

Upon receipt of **ALL APPLICABLE DOCUMENTS LISTED,** HACC will determine and will notify you if the requested rent amount is reasonable based on the market and participant's affordability limits.

- HACC will call to schedule an inspection of the unit for compliance with Housing Quality Standards (HQS). The property owner should be present for the inspection and the unit must be ready for move-in.
- All utilities must be turned on and appliances must present and operable.
- If the tenant is in possession of the unit prior to the contract start date, the tenant is responsible for the full contract rent for that period, until the Housing Assistance Payments Contract (HAP) begins.

II. AFTER THE UNIT PASSES INSPECTION

Lease Contract: You must use your Lease Agreement. Once the property passes inspection, HACC will require a copy of the Lease. The Lease Agreement must be in a standard format and MUST be the same as the lease(s) used for unassisted unit(s) on the premises. The terms and conditions of the lease must be consistent with State and local law. The lease must specify which utilities and appliances will be supplied by the owner and which will be the tenant's responsibility.

Lease-In-Place: Have the tenant sign a new lease with the start date of the contract effective the day the inspection passes **OR** Provide a copy of the original lease **plus** an amendment to the lease start date effective the day the inspection passes. This will not affect the original terms of the lease. HUD regulation requires the lease date and Housing Assistance Payment (HAP) contract date are the same.

Term of Tenancy: It is recommended the initial term of tenancy be a minimum of one (1) year.

III. START DATE OF TENANCY

The start date of the tenancy will be coordinated with you and MUST be approved by HACC. The U.S. Department of Housing and Urban Development (HUD) regulations state that no tenancy (lease) can start until:

- **After** the date the unit passes inspection;
- **After** rent reasonableness of the unit has been determined; and
- **After** the date you and the family sign and date the lease

Tenancy Addendum: This document is required by HUD. If there is any conflict with your lease, the tenancy addendum overrules the lease. Attach it to your copy of the lease. HACC will attach it to the tenant's copy of the lease. The addendum language is also included in the Housing Assistance Payment (HAP) contract.

IV. ERRORS AND OMISSIONS WILL DELAY THE START OF TENANCY

We kindly ask that you review your lease for any errors and omissions. HACC cannot make corrections to the lease signed between you and your tenant. If there are errors or omissions, or if the start date of the tenancy cannot be approved, the lease agreement will be returned. A new lease free of errors and omissions will be required, which could delay the start of tenancy.

V. SIGNING AND RETURNING THE CONTRACT – PENALTY FOR DELAY

HACC will complete the HAP contract and send it to you for signature. You must sign and return it immediately. Payments for new contracts are made on the 1st and 15th of the month. You will receive a copy of the signed HAP contract for your records after the contract has been executed. **If you delay signing the HAP contract so that HACC cannot sign it within 60 days of the start of the tenancy, the contract is null and void.** You will have to resubmit a new lease, and the tenancy can begin only after the date you and the tenant have signed the new lease. HACC is not allowed to pay you on the prior lease.

REQUEST FOR TENANCY APPROVAL

Housing Authority of Clackamas County (HACC)

U.S. DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT
SECTION 8 RENTAL ASSISTANCE

PROGRAM: PBV	VOUCHER UNIT BEDROOM SIZE:	TENANT ID:

I. UNIT TO BE INSPECTED (Fill in completely; print clearly and legibly)

1. Street Address				2. Unit/Apartment #
10785 SE Bissom Way				
3. City			4. State	5. Zip Code
Milwaukie			OR	97222
6. Total Number of Bedrooms	7. Total Number of Bathrooms	8. Total Number of Half Bathrooms	9. Proposed Rent $	10. Security Deposit Amount $ 400
11. Year Built 2015	12. Square Footage	13. Number of Units in Building/Complex 100	14. Date Unit Available for Inspection	15. Requested Beginning Date of Lease ASAP

16. Is the participant currently residing in the unit? Yes ☐ No ☒

17. UNIT TYPE (check one)

☐ Single Family Detached (one family under one roof) ☐ Rowhouse/Townhouse (attached on two sides) ☒ Low-Rise Apartment Building (4 stories or fewer)
☐ Semi-Detached (Duplex, 2 units) ☐ Condominium ☐ High-Rise Apartment Building (5+ stories)
☐ Manufactured Home (mobile home)

18. SPECIAL HOUSING TYPE:

Public Housing Agencies allow assisted participants to lease and reside in Shared Housing – renting a room from an owner who is also renting rooms to other people who may or may not be receiving rental assistance from the PHA. For a Shared Housing situation, the PHA calculates a prorated portion of the housing costs to determine the actual rent for the voucher holder and uses this figure when determining the subsidy amount to be paid by the PHA to the owner.

☐ Check here if the tenant is requesting to rent a bedroom only. Number of Bedrooms being requested:_____

19. IS THIS UNIT A TAX CREDIT (LIHTC) UNIT? Yes ☒ No ☐

If yes, are there other identical tax credit units of the same size (with the same number of bedrooms) in the project that are not occupied by Section 8 participant families? Yes ☐ No ☒

If yes, what is the contract rent of identical units of the same size? $ _____

20. UTILITIES AND APPLIANCES:

Responsibilities selected below (paid by) must match what is stated in the Lease Agreement for this tenancy (check applicable boxes).

Utilities	Specify Fuel Type (check one)				Paid By (check one)	
Space Heating	☒ Electric	☐ Natural Gas	☐ Oil	☐ Bottled Gas	☒ Tenant	☐ Owner
Cooking	☒ Electric	☐ Natural Gas	☐ Oil	☐ Bottled Gas	☒ Tenant	☐ Owner
Water Heating	☐ Electric	☒ Natural Gas	☐ Oil	☐ Bottled Gas	☐ Tenant	☒ Owner
Other Electric					☒ Tenant	☐ Owner
Water					☐ Tenant	☒ Owner
Sewer					☐ Tenant	☒ Owner
Trash Collection					☐ Tenant	☒ Owner
BILL BACK	INDICATE IF ANY UTILITIES WILL BE BILLED BACK TO THE TENANT				☐ YES	☒ NO
					Provided By (check one)	
Refrigerator					☐ Tenant	☒ Owner
Stove					☐ Tenant	☒ Owner

21. UNIT AMENITIES:

☐ Basement/Attic
☐ Carpeting
☐ Ceramic Tile Floor
☐ Deck/Balcony/Patio/Porch
☒ Energy Efficient Cert Unit
☐ Garbage Disposal
☒ Laundry Facilities
☐ Pool
☐ Washer/Dryer Hookups
☐ Yard Sprinkler System
☒ Business/Fitness Center
☐ Ceiling Fan
☒ Clubhouse
☐ Dishwasher
☐ Fenced
☐ Handicap Accessible
☒ Modern Appliances
☒ Security System
☒ Window/Wall A/C Unit
☐ Other
☒ Cable/Internet Ready
☐ Central A/C Unit
☒ Covered and/or Off-street Parking
☒ Elevator
☐ Garage
☐ Hardwood Floors
☐ Playground/Courts
☐ Storage
☐ Working Fireplace

II. RENT REASONABLENESS CERTIFICATION

If the property has more than four (4) units, owners must list at least three most recently leased comparable (same bedroom size) **unassisted** units within the same premises below:

Address and Unit Number	Contract Rent Amount	Lease Date
1. Unknown - new lease up	$	
2.	$	
3.	$	

RTA (REVISED 02/19/2025)

III. CERTIFICATES AND DISCLOSURES

RENTING TO A RELATIVE DISCLOSURE (must check one):

The assisted tenant is not allowed to rent a unit from an owner who is the spouse, parent, child, grandparent, grandchild, sister, or brother of any member of the assisted tenant. Exceptions may be made to this requirement as a Reasonable Accommodation for persons with disabilities.

☐ YES **By signing below,** we are hereby disclosing, under penalty of perjury, that we are related in accordance with the disclosure statement above. By checking this box, we are hereby requesting a reasonable accommodation to the requirement above.

☒ NO **By signing below,** we are certifying, under penalty of perjury, that we are not related in accordance with the disclosure statement above.

RELEASE OF INFORMATION

HACC does not screen a family for suitability. Screening is the owner's responsibility. The HACC is authorized to release specific information about a family/tenant's current and prior addresses if information is available and requested in writing by an owner who has completed an RTA. If the owner would like information on the family's current and/or prior address, and/or the names and addresses of the landlords of the family's current and/or prior address, a request may be submitted in writing to:

The Housing Authority of Clackamas County
P.O. Box 1510, Oregon City, OR 97045.

UNIT INSPECTION REQUIREMENTS

The unit must be vacant, or, occupied by the assisted tenant in order for an inspection to be scheduled. Any appliances present in the unit must remain in place for the assisted tenancy. If the unit is furnished with items not to remain in place for the assisted tenancy, the unit is not ready for inspection. If the tenant moves into the unit before the date authorized by the HACC, the tenant is responsible for the entire rent until date of authorization.

OWNER INFORMATION AND CERTIFICATION	TENANT INFORMATION AND CERTIFICATION
This section only. → Please DO NOT Date!	Name of Family Representative
	Present Address of Family (Number, Street, Apt/Suite)
	City, State, Zip Code
	Telephone Number (Home and messages)
	Email Address
	Signature of Family Representative — Date
	Number of children *UNDER AGE 6* in the family

FOR OFFICIAL USE ONLY:
HA Representative:_____ Date RTA rec'd: _____ Jurisdiction: ☐ In (IJ) ☐ Out (OJ)

Housing Authority of Clackamas County

Disclosure of Information on Lead Based Paint and Lead Based Paint Hazards

Housing built before 1978 may contain lead based paint. Lead from paint, paint chips, and dust can pose health hazards if not taken care of properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, owner must disclose the presence of known lead based paint and lead based paint hazards in the dwelling.

Tenants must receive a federally approved pamphlet on lead poisoning prevention. If an owner fails to offer this information, the U.S. Environment Protection Agency (EPA) can conduct an inspection and possibly issue fines. Owner that may need more information may call (800) 424-4372.

In order for the Housing Authority to conduct an inspection of the unit listed below the owner must initial and sign where indicated on this form. Please read carefully before completing and signing this form.

Is rental listed above built in or after 1978? Yes ☑ No ☐
If you answered yes, you do not need to complete the remainder of this form.

Please answer the questions below if the unit was built prior to 1978 and sign and date at the bottom.

OWNER DISCLOSURE

Presence of lead-based paint and/or lead-based paint hazards (check one box):

☐ Known lead-based paint and/or lead-based paint hazards are present in the unit. Explain:

_____

_____

☑ Owner has no knowledge of lead-based paint and/or lead-based hazards in the unit.

Records and report available to the tenant (check one box):

☐ Owner has provided the tenant with all available records and reports pertaining to lead-based paint and/or lead-based paint hazards in the unit listed above (list documents below):

_____

_____

☑ Owner has no records or reports pertaining to lead-based paint and/or lead-based paint hazards in unit listed above.

Owner CERTIFICATION

The following party has reviewed the information above and certify, to the best of their knowledge, that the information they have provided is true and accurate.

_____

Owner/Agent Signature Date